

THOMAS, J., concurring

“precedents and rules must be followed, unless flatly absurd or unjust,” because a judge must issue judgments “according to the known laws and customs of the land” and not “according to his private sentiments” or “own private judgment.” *Id.*, at 69–70. In other words, judges were expected to adhere to precedents because they embodied the very law the judges were bound to apply.

“[C]ommon law doctrines, as articulated by judges, were seen as principles that had been discovered rather than new laws that were being made.” 3–4 G. White, *The Marshall Court and Cultural Change, 1815–35*, *History of the Supreme Court of the United States* 129 (1988).³ “It was the application of the dictates of natural justice, and of cultivated reason, to particular cases.” 1 J. Kent, *Commentaries on American Law* 439 (1826) (Kent); see *id.*, at 439–440 (the common law is “not the product of the wisdom of some one man, or society of men, in any one age; but of the wisdom, counsel, experience, and observation, of many ages of wise and observing men”). The common law therefore rested on “unarticulated social processes to mobilize and coordinate knowledge” gained primarily through “the social experience of the many,” rather than the “specifically articulated *reason* of the few.” T. Sowell, *A Conflict of Visions: Ideological Origins of Political Struggles* 49, 42 (1987). In other words, the common law was based in the collective, systematic development of the law through reason. See *id.*, at 49–55.

Importantly, however, the common law did not view precedent as unyielding when it was “most evidently contrary to reason” or “divine law.” Blackstone 69–70. The founding generation recognized that a “judge may *mistake* the law.”

³ Our founding documents similarly rest on the premise that certain fundamental principles are both knowable and objectively true. See, e.g., Declaration of Independence (“We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable Rights, that among these are Life, Liberty, and the pursuit of Happiness”).